



### CHAPTER 13.

An Act to extend the period of service of seamen, marines and members of the naval reserves serving during the war period, and to make further provision as to the recall into service during that period of members of those reserves. [21st March 1944.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Any requirement imposed (whether before or after the passing of this Act) by virtue of a proclamation made during the war period under section nine of the Naval Enlistment Act, 1853, section one of the Royal Marines Act, 1939, or section five of the Royal Naval Reserve (Volunteer) Act, 1859—

- (a) that a seaman or marine shall serve for a period of five years from the expiration of his term of service ; or
- (b) that a member of any of the naval reserves shall continue in actual service for a period of five years,

shall have effect as a requirement that he shall serve, or continue in actual service, as the case may be, until the end of the said period of five years or of the war period, whichever last occurs.

(2) In accordance with the preceding subsection, the references in subsection (2) of section one of the Naval and Marine Forces (Temporary Release from Service) Act, 1940 (which provides for the recall of seamen and marines who have been temporarily released but whose term of service has not expired) to the term of service of a seaman or marine shall be construed as references to his term of service as extended by any such proclamation as aforesaid and by the preceding subsection.

Extension of  
period for  
recall of  
members of  
naval  
reserves.

3 Edw. 7. c. 6.

2. Where during the war period, whether before or after the passing of this Act, a member of any of the naval reserves has been released from actual service, then notwithstanding anything in section two or five of the Royal Naval Reserve (Volunteer) Act, 1859, or in regulations made under section one of the Naval Forces Act, 1903, he shall not be entitled to claim his discharge from the reserve before the end of the war period, and shall be liable to be recalled under the said section five into actual service at any time during the war period, and to be retained in such service until the end of that period.

Short title and  
interpretation.

3.—(1) This Act may be cited as the Naval Forces (Extension of Service) Act, 1944.

2 & 3 Geo. 6.  
c. 68.

(2) In this Act the expression "naval reserves" means the Royal Naval Reserve (including the Royal Fleet Reserve), the Royal Naval Volunteer Reserve, and the Royal Naval Special Reserve; and the expression "the war period" means the period beginning with the first day of September, nineteen hundred and thirty-nine, and ending with such date as may be specified by Order in Council under paragraph (a) of section seven of the Armed Forces (Conditions of Service) Act, 1939, as the date on which the emergency which was the occasion of the passing of that Act came to an end.

---

Printed by NORMAN GIBB SCORGIE, C.V.O., C.B.E.,  
Controller of His Majesty's Stationery Office  
and  
King's Printer of Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:  
York House, Kingsway, London, W.C.2; 13a Castle Street, Edinburgh 2;  
39-41 King Street, Manchester 2; 1 St. Andrew's Crescent, Cardiff;  
80 Chichester Street, Belfast;  
or through any bookseller

Price 1d. net

(P. 2078)